

for the definition which belonged to the state of the art had to be sufficiently clear from the description. This principle has been upheld inter alia in T 269/84, T 120/86, T 137/86 and T 278/86. The latter two decisions stipulated that a two-part claim was not justified if it gave an incorrect picture of the state of the art (likewise T 181/95). In T 735/89 the board did not accept a one-part claim because it gave the impression that there was no closer state of the art.

In T 99/85 (OJ 1987, 413) the board held that in opposition proceedings there was no reason officially to insist on a change in the wording of the claim simply because one feature in the preamble to a two-part claim did not belong to the state of the art. Furthermore, the board saw R. 29(1) EPC 1973 as an implementing regulation which did not constitute a ground for opposition. A similar view was held in T 168/85, T 4/87, T 429/88, T 65/89.

In T 350/93 the patent application disclosed processes for the production of electro-active material and composite materials containing such material and included claims in one-part form. The board observed that the one-part form was justified because details in certain process steps distinguished the claimed processes from those in the prior art and the distinctive features were difficult to pick out in a simple and unambiguous form.

In T 121/06 the board found that the combination of features in claim 1 was not known from the prior art. It would thus be detrimental to the logic of the claim to split up its features (i) to (iii) into their basic building blocks merely to indicate which blocks happen to be known from the prior art, without having regard to their inter-relationships. Thus, the two-part form of the claim was found to be inappropriate (R. 29(1) EPC 1973).

For further instances in which a claim in two-part form was not regarded as appropriate, see inter alia T 345/89, T 378/92, T 723/93 and T 181/95.

2.1.2 Two-part claims: preamble and characterising portion

Which features are known and hence to be included in the preamble has to be decided in the light of the objective facts of the case (T 6/81, OJ 1982, 183).

In T 13/84 (OJ 1986, 253) the board considered it could not be accepted as a general rule that the piece of prior art used for the preamble of the claim should be concerned with the same problem as the invention (likewise T 287/02). Generally, the apparatus or process constituting the prior art which was nearest to the invention would have to figure in the preamble of the claim, stating such features of it as were necessary for the definition of the claimed subject-matter and which were in combination already part of this prior art (see also T 897/90). R. 29 EPC 1973 (like R. 43 EPC) made no reference to the necessity or desirability that the characterising portion of the claim should fairly set out the inventive step. It was the subject-matter of the claim as a whole which embodied the invention and the inventive step involved. See also T 886/91, T 157/93.

T 850/90 confirmed that examination for inventive step should also take account of the features in the preamble, since the invention was defined by the claims as a whole.

Likewise, in T.980/95 it was held that there was no explicit requirement in R. 29(1)(a) EPC 1973 that a claim in two-part form be set up on the basis of the "closest" prior art, since the rule made no reference to the necessity or desirability for the characterising portion of the claim to set out the inventive step. Basing the two-part form on a particular state of the art which later turned out not to be the "closest" state of the art for the assessment of inventive step did not in itself contravene R. 29(1)(a) EPC 1973.

In decision T.688/91 (discussed in this chapter II.A.3.3.) the board took the view that there was a breach of R. 29 and Art. 84 EPC 1973 where an incorrect distinction was made between the preamble and the characterising portion (likewise T.181/95).

2.2. More than one independent claim per category: Rule 43(2) EPC

R. 29(2) EPC 1973 was amended with effect from 1 January 2002. Prior to this date it permitted an application to contain two or more independent claims in the same category where it was "not appropriate" to cover the subject matter by a single claim. The amended version of R. 29(2) EPC 1973 specified that an application may contain more than one independent claim in the same category (product, process, apparatus or use) only if the subject-matter involves (a) a plurality of interrelated products, (b) different uses of a product or apparatus or (c) alternative solutions to a particular problem, where it is inappropriate to cover these alternatives by a single claim.

The case law below relates to the amended version of R. 29(2) EPC 1973 (corresponding to R. 43(2) EPC), which is not applicable in opposition proceedings (see in this chapter II.A.2.2.3).

2.2.1 Conditions

In case T.56/01 each of the appellant's requests in the appeal stage contained three independent claims of the same category: one claim to a broadband communications module and two claims to a signal transport system. Hence, the board had to discuss compliance with R. 29(2) EPC 1973. The board concluded from the preparatory documents that condition (a), in spite of the distinction made between products and apparatus in the opening part of the Rule, also applied to apparatus claims. Nevertheless, the board did not consider that condition (a) was met by the two claims for the signal transport system because they were not interrelated. The board inferred from the examples in an early proposal to the Administrative Council for the amendment of R. 29(2) EPC 1973 that interrelated products were meant to be different objects that complement each other, or somehow work together. Moreover, the board defined the "alternative solutions" under R. 29(2)(c) EPC 1973 as different or even mutually exclusive possibilities. Moreover, even alternative solutions were only allowed under the condition that "it is not appropriate to cover these alternatives by a single claim". The board concluded from the preparatory documents that "not appropriate" meant "not possible or not practical". The intention was that, if it was possible to cover alternative solutions by a single claim, then the applicant should do so.

In T. 659/03 the board had to decide whether the two contentious independent claims in the same category were covered by the exception in R. 29(2)(c) EPC 1973. The board held, first of all, that the appellant's wish to protect the two alternative processes by two independent process claims was justified. It then confirmed that there were alternative solutions to a particular problem, since the independent claims each contained all the features required to solve the problem addressed.

In T. 525/03 the board also found that there were alternative solutions and held that it would not appear appropriate to cover those alternative solutions in a single independent claim. Rather, attempting to redefine the subject-matter of these claims in a more generalising way in one independent claim might lead to an objection under Art. 123(2) EPC 1973. Such generalisation could furthermore be problematic under Art. 87 EPC 1973. In T. 895/05 too the board found that the requirements of R. 29(2)(c) EPC 1973 were satisfied.

In T. 2355/11 the board interpreted R. 29(2)(c) EPC 1973. In its view, it was appropriate for the application to have three independent process claims because a single claim bringing together all the process steps could entail a breach of Art. 83 EPC 1973. Besides, a single claim of this kind could give rise to objections under Art. 84 EPC 1973 because the essential features defining the sequencing of the steps in the process would be lost. The board concluded that it was possible but not practical to replace the three independent claims with a single claim.

In T. 671/06 the board found that a claim to a system comprising a power source (specified in broad functional terms) and claims to power sources (specified in structural terms) for that system did not fall under the exception in R. 29(2)(a) EPC 1973. It could be deduced from the examples provided in the Guidelines that inter-related products were, on the one hand, products which, although existing independently from each other as stand-alone products, only performed the invention when interacting with each other (e.g. plug and socket, transmitter – receiver), and, on the other hand, chemical products which were derived from their predecessors (i.e. intermediate(s) and final chemical product, gene – gene construct – host – protein – medicament). In contrast, the claimed system and the claimed power sources did not interact with each other, as the claimed system was completely self-contained in performing the invention. The board concluded that the term "inter-related products" in R. 29(2) EPC 1973 did not extend to a system which is self-contained in performing the invention and a product which is a constitutive substituent part for that system. The board did not follow T. 133/02, which had held that a system claim and a means claim relating to a component of the system were directed to inter-related products, similar to a plug and a connection system combining the plug with an adapted socket. In T. 671/06 the board argued that a claim directed to a connection system comprising the plug would be dependent on the claim to the plug, as it necessarily comprised all the features of the plug. However, R. 29(2) EPC 1973 was not intended to permit or prohibit claims which were permitted under R. 29(4) EPC 1973. The scope of application of these rules should be kept separate.

Likewise in T. 1232/07 the board, discussing the exceptions laid down in R. 29(2) EPC 1973, highlighted that exception (a) referred only to interrelated products

and not to some kind of interrelationship between the subject-matter of independent claims. Such products were, on the one hand, objects which although existing independently of each other as stand-alone products only performed the distributed invention when interacting with each other (e.g. lock and key) and, on the other hand, chemical compounds derived from their precursors. Moreover, the board pointed out that exception (b) referred to different uses of a product or apparatus and not to different uses of a concept as argued by the appellant (applicant).

2.2.2 Burden of proof

In T 56/01 the board emphasised that, when an objection under R. 29(2) EPC 1973 arose, the burden of proof was shifted onto the applicant, i.e. it was up to the applicant to argue convincingly why additional independent claims could be maintained. Likewise the board in T 1388/10 stressed that the onus of setting out and proving the case for the application of an exception (in this case, an exception under R. 43(2) EPC) lay with the party seeking to rely on that exception. Thus, an applicant wanting more than one independent claim in the same category must, if the examining division objects, convincingly demonstrate that all the additional independent claims fall under one of the exceptions provided for in R. 43(2) EPC.

2.2.3 No applicability in opposition proceedings

In T 263/05 (OJ 2008, 329) the board considered whether R. 29(2) EPC 1973 (R. 43(2) EPC) applied in opposition proceedings by virtue of the reference in R. 61a EPC 1973. The board reviewed decision G 1/91 (OJ 1992, 253), which had considered the effect of R. 61a EPC 1973 in the context of the requirement of unity. The Enlarged Board had taken the view that the reference to Chapter II was only a general one and that R. 61a EPC 1973 could only be taken to refer "to those requirements which would still be reasonable to demand of the new documents relating to the amended patent". The board in T 263/05 concluded that R. 29(2) EPC 1973 did not apply in opposition proceedings to prohibit an amendment to a granted patent if it would be unreasonable to demand of the amended claims that they comply with this rule. This condition was satisfied in a case where otherwise R. 29(2) EPC 1973 would force the patent proprietor to abandon potentially valid subject matter already contained in the granted claims. Once an amendment to the claims had been established to be necessary and appropriate having regard to the grounds of opposition, it would be unreasonable to impose the additional requirement that the amendment complied with the purely administrative provisions of R. 29(2) EPC 1973 (see also T 987/05; T 1242/06, OJ 2013, 42; T 85/08). For example it is, in principle, possible in opposition proceedings to replace an independent claim as granted by two independent claims directed to specific embodiments covered by the independent claim as granted (see T 223/97, T 428/12 and chapter IV.C.5.1.2 c). (ii) "Filing new independent claims").

2.3. Conciseness and number of claims

Whilst R. 43(2) EPC provides for a restriction in the number of independent claims per category, there is no equivalent limit on the number of dependent claims or claims

concerning a particular embodiment of an invention (R. 43(3) and (4) EPC). R. 43(5) EPC provides that the number of claims shall be reasonable with regard to the nature of the invention claimed.

Pursuant to Art. 84 EPC claims must not only be clear, but also concise. In a number of cases this has been interpreted as requiring claims to be concise both individually and in their entirety (see e.g. T 79/91, T 246/91). The examination of these requirements depends on the specific facts of the case (see also T 596/97, T 993/07).

A Markush formula is the most concise means of defining a class of chemical compounds in a claim (T 1020/98). The examining division had held that "formulating claims in a style that makes routine tasks in substantive examination unnecessarily difficult" was a contravention of Art. 84 EPC 1973. However, there is no legal basis in the EPC for a request to restrict the content of an independent claim so that substantive examination can be carried out with greater ease and less effort.

Regarding lack of conciseness because of a superfluous claim, see e.g. T 988/02.

In T 1882/12 the board pointed out that R. 43(3) EPC neither prohibited including optional features in a claim nor made it mandatory to draft a separate dependent claim for each particular embodiment to be cited in the claims.

2.4. Reference to the description or drawings: Rule 43(6) EPC

Pursuant to R. 43(6) EPC claims shall not rely, "except where absolutely necessary", on references to the description or drawings in specifying the technical features of the invention. Expressions such as "as described in part...of the description", or "as illustrated in figure...of the drawings" are to be avoided.

In T 150/82 (OJ 1984, 309) the board ruled that claims relying on references to the description in the specification in respect of all their technical features (so called "omnibus claims") were unallowable as contrary to R. 29(4) and R. 29(6) EPC 1973 (R. 43(4) and (6) EPC), unless absolutely necessary, e.g. when a plurality of conditions would not lend themselves to verbal expression without such a reference. Examples of such exceptions included inventions containing features or limitations which could only be expressed by means of drawings or graphs defining a particular shape or a plurality of conditions. In T 271/88 the board upheld T 150/82 and decided that it was not possible to base claims on an appendix showing structural chemical formulae designated as "chemical formulae incorporated within claims". The board held that it was quite evident that the terms "description" and "drawing" in R. 29(6) EPC 1973 were meant to cover structural chemical formulae. See also T 752/94.

In T 1156/01 the board considered that, if the invention was characterised by parameters, the method of and means for measurement should appear completely in the claim itself, whenever this was reasonable, or by reference to the description in accordance with R. 29(6) EPC 1973, if the method was so long that it would impair the conciseness of the claim (confirmed in T 796/01).